

Standard Individual Affidavit Question Guides

Questions to answer in separate sworn affidavits

Example: How to Answer the Questions

Use this page as a format guide when preparing a sworn affidavit. Replace the bracketed details with the correct information. Answer only what you know personally. If something does not apply, write "Not applicable" and briefly explain why.

Example opening

I, [full name], identity number [ID number], residing at [residential address], confirm that I am [relationship to the deceased] of the late [deceased member's full name]. I make this affidavit to answer the questions requested for the Section 37C death benefit investigation.

Example answer format

The person should answer in full sentences and paragraphs.

Relationship example: I was the deceased's [spouse / parent / child / sibling / dependant]. I knew the deceased from [year or approximate date] until the date of death. During that time, our relationship was [briefly explain relationship and contact].

Household example: At the time of death, the deceased was living at [address or area]. The people who lived with the deceased were [names and relationships], to the best of my knowledge.

Support example: To the best of my knowledge, the deceased financially supported [name(s)] by paying for or contributing towards [food / rent / school fees / transport / other]. The support was usually about [amount or description] per [week / month], where known.

Children example: The deceased had [number] child/children: [names, ages, and whether they are in school]. If I do not know all the details, I have stated only the information I know.

Documents example: I can provide [ID copy / birth certificate / marriage certificate / proof of school / bank statement / proof of residence] where available.

Spouse / Life Partner Affidavit Questions

For the deceased member's spouse, life partner, customary spouse, or cohabiting partner.

Questions to answer in the affidavit

1. What is your full name, ID number, contact number, and current address?
2. What was your relationship to the deceased?
3. When did your relationship with the deceased start?
4. Were you legally married, customarily married, life partners, or living together?
5. Where were you living at the time of the deceased's death?
6. Where are you living now?
7. What is your employment or income status?
8. Were you financially dependent on the deceased?
9. What support did the deceased provide to you?
10. How much support did the deceased provide, and how often?
11. Do you have any proof of the support, such as bank statements, receipts, messages, e-wallet records, or store accounts?
12. Who are the deceased's known children, dependants, spouse/partner, and parents, if known?

Parent Affidavit Questions

For the deceased member's mother or father, if alive and traceable.

Questions to answer in the affidavit

1. What is your full name, ID number, contact number, and current address?
2. Are you the deceased's mother or father?
3. What was the deceased's full name?
4. Who was the deceased's spouse or partner, if known?
5. Who are the deceased's children or dependants, if known?
6. What is your employment, pension, grant, or income status?
7. Were you financially dependent on the deceased?
8. What support did the deceased provide to you?
9. How much support did the deceased provide, and how often?
10. Do you have any proof of the support?

Major Child Affidavit Questions

For a child of the deceased who is 18 years or older.

Questions to answer in the affidavit

1. What is your full name, ID number, contact number, and current address?
2. Are you the child of the deceased?
3. Where were you living at the time of the deceased's death?
4. Where are you living now?
5. Are you employed, unemployed, studying, or receiving any income?
6. Were you financially dependent on the deceased?
7. What support did the deceased provide to you?
8. How much support did the deceased provide, and how often?
9. If you are studying, what institution do you attend and what proof of enrolment or fees can you provide?
10. Do you have any proof of the financial support?

Minor Child Guardian / Caregiver Affidavit Questions

For the biological parent, legal guardian, or caregiver of a minor child of the deceased.

Questions to answer in the affidavit

1. What is your full name, ID number, contact number, and current address?
2. What is the minor child's full name, age, ID number or birth certificate number?
3. Are you the child's biological parent, legal guardian, or caregiver?
4. Was the deceased the biological parent of the child?
5. Where does the child currently live?
6. Who currently cares for the child?
7. What school does the child attend?
8. Did the deceased financially support the child?
9. What support did the deceased provide for the child?
10. How much support did the deceased provide, and how often?

Other Financial Dependant Affidavit Questions

For any other person claiming financial dependency, including sibling, relative, partner, or non-family dependant.

Questions to answer in the affidavit

1. What is your full name, ID number, contact number, and current address?
2. What was your relationship to the deceased?
3. What is your employment or income status?
4. Were you financially dependent on the deceased?
5. What support did the deceased provide to you?
6. How much support did the deceased provide, and how often?
7. What basic needs did the deceased's support help you meet?
8. Was the deceased married or in a life partnership/customary relationship, if known?
9. Who was known to you as the deceased's spouse or partner, if any?
10. Did the deceased have children? If yes, provide their names, ages, and caregivers if known.
11. Who are the deceased's parents, and are they alive or deceased if known?
12. Do you know of any other dependants or people the deceased supported financially?
13. Do you know of any other household, spouse, partner, child, or dependant of the deceased?
14. Do you have any proof of the support?

Neighbour / Third-Party Witness Affidavit Questions

For a neighbour, friend, community member, or other independent person who knew the deceased.

Questions to answer in the affidavit

1. What is your full name, ID number, contact number, and current address?
2. How did you know the deceased?
3. How long did you know the deceased?
4. Where did the deceased live at the time of death?
5. Who lived with the deceased at the time of death?
6. Who was known to you as the deceased's spouse or partner?
7. What children, parents, or dependants of the deceased do you know about?
8. Do you know of any other household, spouse, partner, child, or dependant of the deceased?
9. Do you know whether the deceased financially supported anyone?
10. If yes, who was supported and what type of support was provided?
11. Do you stand to benefit financially from this claim?

Family Witness Affidavit Questions

For a family member who can confirm the deceased's family structure, parents, spouse, children, and dependants.

Questions to answer in the affidavit

1. What is your full name, ID number, contact number, and current address?
2. What is your relationship to the deceased?
3. How long did you know the deceased?
4. Who was the deceased's spouse or partner, if known?
5. Who are the deceased's children, if known?
6. Who are the deceased's parents, and are they alive or deceased?
7. Who depended financially on the deceased, if anyone?
8. What support did the deceased provide, if known?
9. Do you know of any other household, spouse, partner, child, or dependant of the deceased?
10. Do you stand to benefit financially from this claim?

Colleague Affidavit Questions

For a workplace colleague or supervisor who knew the deceased and can confirm family or dependency facts known at work.

Questions to answer in the affidavit

1. What is your full name, ID number, contact number, occupation, and workplace?
2. How did you know the deceased at work?
3. How long did you work with or know the deceased?
4. What spouse, partner, children, or dependants did the deceased mention at work?
5. Do you know whether the deceased financially supported anyone?
6. If yes, who was supported and what type of support was provided?
7. Do you have any personal financial interest in this claim?

Customary / Life Partner Recognition Affidavit Questions

For a family elder, parent, sibling, or close family witness who can confirm a customary union or life partnership.

Questions to answer in the affidavit

1. What is your full name, ID number, contact number, and relationship to the deceased?
2. How do you know the claimant and the deceased?
3. When did the relationship between the claimant and deceased start?
4. Was the claimant recognized by the family as the deceased's spouse or life partner?
5. Were lobola or customary negotiations discussed or completed?
6. Did the claimant and deceased live together?
7. Where did they live together, if known?
8. Did they have or raise any children or dependants together?
9. Why do you say the claimant should be recognized as the spouse or life partner?